

[4 EDW. 7.] *Alexandra (Newport and South Wales)* [Ch. cxcii.]
Docks and Railway Act, 1904.



CHAPTER cxcii.

An Act to empower the Alexandra (Newport and South Wales) Docks and Railway Company to extend their existing South Dock and to construct other works and to execute a diversion or straightening of the River Ebbw and for other purposes. [15th August 1904.] A.D. 1904.

WHEREAS the Alexandra (Newport and South Wales) Docks and Railway Company (in this Act called "the Company") were incorporated by the Alexandra (Newport) Dock Act 1865 for making a dock railways and other works in the county of Monmouth with a share capital of six hundred thousand pounds divided into thirty thousand shares of twenty pounds each :

And whereas under the powers of that Act and of the following Acts (all of which are collectively hereinafter referred to as "the recited Acts") (that is to say) :—

The Alexandra (Newport) Dock Act 1868 ;

The Alexandra (Newport) Dock Act 1870 ;

The Alexandra (Newport) Dock Act 1873 ;

The Alexandra (Newport) Dock Act 1874 ;

The Alexandra (Newport) Dock Act 1876 ;

The Alexandra (Newport and South Wales) Docks and Railway Act 1882 ;

The Newport Dock (Transfer) Act 1883 ;

The Alexandra (Newport and South Wales) Docks and Railway Act 1885 ;

The Alexandra (Newport and South Wales) Docks and Railway Act 1890 ;

The Alexandra (Newport and South Wales) Docks and Railway Act 1896 ;

[Price 2s. 9d.]

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The Alexandra (Newport and South Wales) Docks and Railway Act 1897;

the Company have constructed or acquired the docks railways and other works therein mentioned or some of them and a large business has been carried on thereat for about thirty years :

And whereas the business at the docks is still increasing and further dock accommodation is now needed to meet the requirements and development of traffic thereat :

And whereas the extension of the Company's South Dock and the construction of the other works in this Act described would consequently be of local and public advantage and it is expedient that the Company be empowered to execute the same and also to execute a diversion or straightening of the River Ebbw :

And whereas the lands upon which the dock extension and certain other works are to be made under this Act include part of the two hundred and thirteen acres acquired by the Company from the Right Honourable Godfrey Charles Lord Tredegar (in this Act referred to as "Lord Tredegar") and the trustees of his family settlement under the Land Agreement of 1864 scheduled to and confirmed by the Alexandra (Newport) Dock Act 1865 :

And whereas in consequence of the construction of the dock extension and works by this Act authorised or some of them part of the road known as Mendlegieff Road in the parish of Saint Woollos and county borough of Newport will become unnecessary and it is expedient that provision be made for empowering the Company in that event to stop up the same :

And whereas it is expedient to make further provision with respect to the capital of the Company and to alter the number and quorum of the directors :

And whereas it is expedient to empower the Company to establish a superannuation fund and a savings bank for the benefit of their officers and servants and to make such other provisions as this Act contains :

And whereas upwards of three fourths in value of the existing holders of consolidated stock B of the Company have signified their consent in writing to the provisions of this Act relating to the raising of two hundred and seventy thousand pounds of the additional capital by increasing the present A and B consolidated stocks in manner proposed by this Act :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

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And whereas plans and sections showing the lines situation and levels of the dock extension and other works and the lands which may be taken under the powers of this Act with a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of such lands have been deposited with the clerk of the peace for the county of Monmouth and the same are in this Act referred to as the deposited plans sections and book of reference : A.D. 1904: —

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PRELIMINARY.

1. This Act may be cited as the Alexandra (Newport and South Wales) Docks and Railway Act 1904. Short title.

2. The provisions of the Companies Clauses Consolidation Act 1845 with respect to— Incorporation of general Acts.

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The conversion of the borrowed money into capital ;

The consolidation of the shares into stock ;

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested ;

the Companies Clauses Act 1863 as amended by subsequent Acts the Lands Clauses Acts and the Harbours Docks and Piers Clauses Act 1847 are (except so far as expressly varied by or inconsistent with this Act) incorporated with and form part of this Act :

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Provided that the provisions of the Harbours Docks and Piers Clauses Act 1847 respecting lifeboats and a tide or weather gauge shall not apply to the Company or the undertaking unless and until the Board of Trade by notice in writing to the Company so require.

Definition of undertaking.

3. In this Act the expression "the undertaking" means the undertaking of the Company as authorised by the recited Acts and this Act.

WORKS.

Power to make and maintain dock extension and other works.

4. Subject to the provisions of this Act the Company may make and maintain in the lines and situations and according to the levels shown on the deposited plans and sections the dock extension and works following (that is to say) :—

- (A) A dock in extension of the existing South Dock of the Company to be situated on lands bounded on the north and north-east by the existing dock and lands of the Company on the south-east and south by the River Usk and on the west by an imaginary line drawn in a north-westerly direction from the mouth of the River Ebbw to the north-east corner of the enclosure numbered 191 on the Ordnance map (scale $\frac{1}{2500}$) of the parish of Duffryn (second edition 1901) and thence in a northerly direction to the north-east corner of the enclosure numbered 478 on the Ordnance map (scale $\frac{1}{2500}$) of the parish and county borough of Newport (second edition 1901):
- (B) A diversion and straightening in the parishes of Duffryn and Saint Brides Wentloog and the parish and county borough of Newport of so much of the River Ebbw as lies between a point thereon 4 chains or thereabouts measured in a south-easterly direction from the north-east corner of the enclosure numbered 191 on the Ordnance map of the parish of Duffryn above mentioned and its junction with the River Usk:
- (C) A wharf situated wholly in the parish and county borough of Newport along the west bank of the River Usk commencing at a point thereon 3 chains or thereabouts measured in a north-westerly direction from the outer end of the north pier of the north entrance lock of the Company and terminating at a point 7 chains or thereabouts from the point of commencement above described:

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- (D) A pier or jetty No. 1 situated wholly in the parish and county borough of Newport on the west bank of the River Usk at a point thereon 15 chains or thereabouts measured in a north-westerly direction from the outer end of the north pier above mentioned : A.D. 1904. —
- (E) A pier or jetty No. 2 situated wholly in the parish and county borough of Newport on the west bank of the River Usk at a point thereon 17 chains or thereabouts measured in a north-westerly direction from the outer end of the north pier above mentioned :
- (F) An extension wholly in the parish and county borough of Newport of the north pier above mentioned for a distance of ten yards or thereabouts in a north-easterly direction.

5. Subject to the provisions of this Act the Company is hereby further authorised to execute do and maintain the following works and things (that is to say) :— Subsidiary works.

To make provide alter and maintain in connection with the dock extension and other works authorised by this Act all necessary and convenient locks gates opening and other bridges graving and other docks caissons foundries workshops engineering and other machinery including electric machinery for establishing electric light traction and power and appliances for building and repairing ships shipping places wharves quays slips jetties landing-places stages rails plates sleepers trams sidings stations platforms ways approaches warehouses sheds buildings cranes hydraulic lifts pumping machinery drops grid-irons dredgers tugs moorings buoys dolphins culverts sluices drains and other works and conveniences and to remove all landing-stages mooring posts buoys or other erections and appliances at and near the said dock extension Ebbw diversion and other works :

To take and divert water from the Rivers Usk and Ebbw into the said dock extension and other works or into any of the existing docks basins locks and works of the Company :

To dredge scour and deepen the bed shore and soil of the Rivers Usk and Ebbw at and near the said dock extension Ebbw diversion and other works :

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To cross stop up alter or divert temporarily any roads ways footpaths bridges railways tramways aqueducts streams watercourses reens sewers drains culverts and pipes with which it may be necessary to interfere in carrying out the intended works :

Provided that any electric machinery for establishing electric light traction or power or for any other purpose shall be so constructed maintained worked and used as not to interfere with telegraphic communication by means of any telegraphs for the time being belonging to or used by the Postmaster-General.

Power to deviate.

6. In making the dock extension and other works the Company may deviate laterally from the lines shown on the deposited plans to any extent within the limits of deviation shown thereon and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding ten feet save where a greater deviation is sanctioned by the Board of Trade as being necessary for avoiding interference with any sewer main pipe or other work Provided that no deviation either lateral or vertical or any works situate in the tideway below high-water mark shall be made without the consent in writing of the Board of Trade.

Saving rights of Crown.

7. Nothing herein contained shall authorise the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall anything herein contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exercisable by the King's Majesty.

Provision against danger to navigation.

8. In case of injury to or destruction or decay of the pier or works or any part thereof the Company shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House Deptford

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Strond and shall apply to that corporation for directions as to the means to be taken and the Company shall be liable to a penalty not exceeding ten pounds for every calendar month during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken. A.D. 1904.

9. The Company shall at or near the works below high-water mark hereby authorised during the whole time of the constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade from time to time require or approve. Lights on works during construction.

If the Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

10. The Company shall at the outer extremity of their works below high water exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of Trinity House Deptford Strond shall from time to time direct. Permanent lights on works.

If the Company fail to comply in any respect with the provisions of the present section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

11. The Company shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such regulations being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the Works below high-water mark not to be commenced without consent of Board of Trade.

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A.D. 1904. — amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

Period for completion of works.

12. If the dock extension and other works by this Act authorised are not completed within eight years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making the same or otherwise in relation thereto shall cease to be exercised except as to so much thereof as shall then have been completed.

Power to acquire lands.

13. Subject to the provisions and for the purposes of this Act the Company may from time to time enter on take and use the lands delineated on and described in the deposited plans and book of reference or any part thereof:

Provided that nothing in this Act contained shall authorise the Company to acquire any estate or interest of Lord Tredegar or other the owners for the time being of the Tredegar Settled Estates in any lands forming part of those estates other than the lands mentioned in the section of this Act the marginal note whereof is "Additional powers as to lands" otherwise than under and subject to the provisions of the agreement dated the ninth day of March one thousand nine hundred and four between Lord Tredegar and the trustees of the settlements of his family estates and the Company a copy of which agreement is set forth in the First Schedule to this Act and which agreement is hereby confirmed and made binding on the Company and is hereinafter referred to as "the scheduled agreement."

Additional powers as to lands.

14. Subject to the provisions of this Act the Company may in addition to the other lands which they are authorised to acquire by this Act enter on take and use for the purposes of their undertaking all or any of the lands following delineated on and described in the deposited plans and book of reference (that is to say):—

(A) Certain lands situated wholly in the parish and county borough of Newport in the county of Monmouth $\frac{1}{4}$ acre or thereabouts in extent adjoining the River Usk and the Company's dock known as the Old Dock now in the occupation and held under lease by the Company bounded on the north-west and north-east by lands in the possession of the Company on the south-east by the River Usk and on the south-west by waste lands forming part of the Tredegar Settled Estates:

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- (B) Certain lands situated wholly in the parish and county borough of Newport in the same county 2 acres or thereabouts in extent now in the occupation and held by the Company under lease bounded on the north-west by the sidings belonging to the Great Western Railway Company on the north-east by lands in the possession of the Company on the south-east by the public road known as Dock Parade leading from the town of Newport to the Company's said Old Dock and on the south-west by railways shown on the Ordnance map of that parish belonging to the Tredegar Estate. A.D. 1904.

Nothing in this section shall be deemed to authorise the Company to interfere with any public footpath (if any) existing at the date of the passing of this Act across the lands mentioned in subsection (A) of this section.

15. The powers of the Company for the compulsory purchase of lands under this Act shall cease after the expiration of four years from the passing of this Act. Period for compulsory purchase of lands.

16. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Power of persons under disability to grant easements &c.

17. Section 13 of the *Alexandra (Newport and South Wales) Docks and Railway Act 1882* is hereby repealed from the words "and that road shall when completed" to the end of the section and section 7 of the *Alexandra (Newport and South Wales) Docks and Railway Act 1896* is hereby repealed and the Company may at any time after the passing of this Act stop up and discontinue so much of Mendlegieff Road in the parish and county borough of Newport as lies to the southward of a point seventy-five yards or thereabouts to the south-west of the railway bridge over that road at East Mendlegieff Junction by erecting a fence or bars across the said road and when and so soon as such fence or bars shall have been erected all rights of way or of passing and repassing Power to stop up part of Mendlegieff Road.

A.D. 1904. along the said road so stopped up and discontinued shall be by virtue of this Act extinguished :

Provided that if by reason of the stopping up the said portion of road Lord Tredegar or his sequels in estate shall be deprived of access by means of the said portion of road to any part of the Tredegar Settled Estates then the Company shall be bound to provide for the use of Lord Tredegar and his sequels in estate his and their lessees and tenants means of access to such part of the Tredegar Estates not less convenient than the access to which he or they would but for this section have been entitled under the recited Acts Provided further that until the Company shall have acquired the land of Lord Tredegar abutting on the said portion of road the centre line thereof shall continue to be the boundary between the respective properties of Lord Tredegar and the Company and any access provided shall so far as the same shall be situate on lands for the time being belonging to the Company be maintained by and at the expense of the Company to the satisfaction of Lord Tredegar or his sequels in estate :

Provided that if by reason of the stopping up of the said road the corporation of Newport shall be deprived of access to any land at present let to them by Lord Tredegar the Company shall provide means of access not less convenient than the corporation now have by means of the said portion of road.

Extension of time for completion of South Dock &c.

18. The powers of the Company for the construction and completion of the dock and works authorised by the Company's Act of 1882 are hereby revived and the time limited by that Act as amended by section 10 of the Company's Act of 1896 for completion of the said dock and works is hereby extended for a period of four years from the eighteenth day of August one thousand nine hundred and two.

CAPITAL.

Power to create additional consolidated stock A.

19. The directors of the Company may without any further or other authority than this Act from time to time create and issue for the purposes of this Act consolidated stock A of the Company to an amount not exceeding one hundred and thirty-five thousand pounds and such stock shall when created and issued rank *pari passu* with and bear the same dividend payable at the same times as the existing consolidated stock A of the Company.

Power to create additional con-

20. In addition to the amount of consolidated stock A which they are authorised to create and issue under this Act the directors

of the Company may without any further or other authority than this Act create and issue for the purposes of this Act consolidated stock B to an amount not exceeding one hundred and thirty-five thousand pounds and such stock shall when created and issued rank pari passu with and bear the same dividend payable at the same times as the existing consolidated stock B of the Company.

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consolidated
stock B.

21. The directors of the Company may also without any further or other authority than this Act create and issue for the purposes of this Act preferred ordinary stock to an amount not exceeding one hundred and fifty thousand pounds and such stock shall for all purposes of dividend and otherwise rank pari passu with and be deemed to be part of the existing preferred ordinary stock of the Company.

Power to
issue addi-
tional pre-
ferred ordi-
nary stock.

22. The agreement dated the ninth day of March one thousand nine hundred and four between the Company and Lord Tredegar as set out in the Second Schedule to this Act which relates to the raising of the additional preferred ordinary stock to be created as aforesaid is hereby confirmed and made binding on the parties thereto.

Confirming
agreement
between
Company
and Lord
Tredegar.

23. The Company may in respect of the additional capital of four hundred and twenty thousand pounds which they are by this Act authorised to raise from time to time borrow on mortgage of their undertaking any sum not exceeding in the whole one hundred and forty thousand pounds and of that sum they may borrow not exceeding ten thousand pounds in respect of every thirty thousand pounds of such additional capital but no part of any such sum of one hundred and forty thousand pounds shall be borrowed until stock for the portion of the capital in respect of which it is to be borrowed is issued and accepted and one half of such capital is fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that stock for the whole of such portion of capital has been issued and accepted and that one half of such portion of capital has been paid up and the Company have proved to such justice as aforesaid before he so certifies that such stock was issued and accepted and to the extent aforesaid paid up in good faith and is held by the persons or corporations to whom the same was issued or their executors administrators successors or assigns and upon production to such justice of the books of the Company and of such other evidence

Power to
borrow.

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A.D. 1904. — as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Existing mortgages to have priority.

24. All mortgages granted by the Company in pursuance of the provisions of any Act of Parliament before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act.

Power to create debenture stock.

25. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and to the provisions of the recited Acts.

Company may apply funds.

26. The Company may from time to time apply for or towards all or any of the purposes of this Act to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of the recited Acts and which are not required for the purposes to which they are by those Acts made specially applicable.

Application of money raised.

27. All money raised under this Act whether by shares or stock or by mortgages or debenture stock shall be applied only to purposes of the undertaking to which any capital of the Company is properly applicable under this Act or otherwise.

Provisions as to dividends on ordinary stock.

28. In the case of all ordinary stock of the Company which has been converted into or created as preferred and deferred ordinary stock the Company shall ascertain and declare dividends as if such preferred and deferred ordinary stock were a uniform ordinary stock of the Company and the dividends so declared shall for the purpose of all Acts relating to investments by trustees and for all other purposes be held to be dividends on the ordinary stock of the Company But nothing in this section shall prejudice or affect the position or rights as to distribution of dividends inter se of the holders for the time being of such preferred and deferred ordinary stock as aforesaid.

As to application of surplus profits.

29. Notwithstanding anything in any of the recited Acts the surplus profits of the Company in each year after paying the dividends for that year on the consolidated stock "A" and the consolidated stock "B" and all prior dividends and charges (if any) and after placing to reserve fund and carrying forward such sums as the directors of the Company may from time to time

deem expedient shall be applied as and so far as the same may be sufficient in the following manner (that is to say) :— A.D. 1904.

First In paying a dividend of four per centum per annum on the whole of the preferred ordinary stock of the Company ;

Secondly In paying a dividend of four per centum per annum on the whole of the deferred ordinary stock of the Company ; and

Thirdly In paying an additional dividend on the whole of the preferred and deferred ordinary stocks of the Company as if the same were one stock ranking equally for dividend :

Provided that this section shall not come into operation till the first day of January next after preferred ordinary stock of the Company to the amount of at least seventy-five thousand pounds shall have been created and issued under the powers of this Act and fully paid up.

CERTIFICATES AND WARRANTS FOR GOODS.

30. The Company from time to time at the request of any person warehousing or depositing any goods in any warehouse or on or in any of the quays wharves or yards of the Company or entitled to any goods so warehoused or deposited may if the Company think fit issue and deliver to him a certificate of such goods having been so warehoused or deposited. Company may issue certificates of deposited goods.

31. On delivery to the Company of any such certificate to be cancelled the Company may issue to the person delivering up the certificate a warrant for the delivery of all or any goods specified in the certificate Provided that if the warrant be for the delivery of part only of the goods the Company may issue to the person delivering up the certificate a new certificate with respect to the goods not specified in the warrant. Company may issue warrants for delivery of goods.

32. Every such certificate and warrant shall be deemed to be a document of title to the goods specified therein and shall be transferable by indorsement and any holder of such certificate or warrant whether the person named therein or the indorsee thereof shall have the same right to the possession and property of such goods as if they were deposited in his own warehouse. Effect of certificate or warrant.

Every such certificate or warrant shall state on the face thereof the effect of this section and that it is issued under the powers of this Act.

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Certificate or
warrant not
to be given
till freight
rates &c.
paid.

33. No such certificate or warrant shall be given unless and until all liens and claims for freight and all other liens or claims whatsoever to which the goods were liable while on board any vessel and before the warehousing or depositing of the same and of which the Company have had notice in writing and all rates rents charges and expenses payable to the Company with respect to the warehousing or depositing of the goods or for services performed by the Company in respect thereof are paid or discharged.

Certificates
warrants &c.
signed by
duly autho-
rised officers
sufficient.

34. All certificates delivery warrants transfer certificates and other documents relating to goods in the custody of the Company or to the management of the business of their docks if signed and issued by any officer duly authorised in that behalf shall be effectual in law and binding on the Company and all other parties interested without any other signature and without any seal.

SUPERANNUATION FUND.

Power to
establish a
superannua-
tion fund.

35. The Company may if they think fit establish and maintain a superannuation fund for the benefit of their officers and servants and (if so resolved on) of the widows and children of such persons and in the event of their resolving to establish such fund the directors of the Company shall appoint a committee for the purpose of preparing and shall with the aid of an actuary or such other professional assistance as they may consider necessary prepare a scheme for the establishment of a fund for the payment of superannuation or retiring allowances to the officers and servants of the Company (not being directors) who shall be contributors to such fund and (if so resolved on) of allowances to the widows and children of such contributors and such committee may by a majority of its members determine in and by such scheme the following matters (that is to say):—

What classes of officers and servants of the Company shall be entitled to contribute to and to participate in the benefits of the fund and to what extent such contribution shall be obligatory on the officers and servants of the Company:

What (if any thing) shall disqualify any officer or servant of the Company from becoming a contributor to the fund and participating in the benefits thereof:

Under what circumstances any person having been a contributor to the fund shall cease to be entitled to participate in the benefits thereof:

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What proportion (if any) of his own contribution to the fund any person having been but ceasing to be a contributor thereto shall be entitled to receive: A.D. 1904.

What proportion (if any) of the sums contributed by any person to the fund shall be payable to his representatives in the event of his dying before he becomes entitled to a superannuation or retiring allowance:

The age at which or other circumstances under which any person shall become entitled to a superannuation or retiring allowance:

What allowances (if any) and in what circumstances shall be payable to the widows and children respectively of each or any class of contributors:

The scale on which any such allowances shall be calculated and under what (if any) circumstances such scale may from time to time be revised:

The contributions to the fund to be made either periodically or by way of a lump sum or partly in one way and partly in the other by the officers and servants of the Company and the mode and conditions of reckoning service:

The contributions (if any) to be made by the Company to the fund:

The future management and direction of the fund and the number qualification and mode of appointment or election of the committee in whom such management and direction shall be vested and the remuneration (if any) to be paid out of the fund to the members and officers of such committee:

The manner in which contributors to the fund and others shall have access to the accounts:

The securities on which the moneys received on account of the fund shall from time to time be invested:

And generally all such other matters in relation to the fund as the committee constituted as aforesaid shall deem fit and proper to form part of and to be included in such scheme:

With power for the directors of the Company from time to time to vary or add to the provisions of such scheme but not so as to affect the rights or position of any person who at the time of any variation or addition is a contributor to the fund without the consent of such person:

A.D. 1904. — Provided that it shall not be obligatory on the part of any present or future officer or servant of the Company to become a member or contribute to the fund and neither shall membership or contribution to the fund be compulsory as a condition of employment.

Scheme to contain certain provisions.

36. Any scheme for the establishment of a superannuation fund under this Act shall contain the following provisions:—

Any contributing member leaving the service of the Company in consequence of reductions or alterations in the establishment or from his services being discontinued by the Company from any cause other than fraud dishonesty or misconduct shall be entitled to receive back from the fund the whole amount of his own contributions with simple interest at the rate of two and a half per centum per annum from the date of such contributions respectively and shall have no further claim on the fund;

But in case of dismissal for misconduct not being fraudulent or dishonest or involving pecuniary loss to the Company the member shall be entitled to receive back from the fund the whole amount of his own contributions with such interest (if any) not exceeding the said rate of two and a half per centum as the Company on application to them may think fit to allow having regard to all the circumstances of the case:

Any contributing member retiring from the service of the Company before superannuation bonâ fide of his own accord and not in order to escape dismissal for fraud dishonesty or misconduct shall be entitled to receive back from the fund the amount of his own contributions thereto but without interest and shall have no further claim on the fund:

Any contributing member dismissed the service of the Company for fraud dishonesty or misconduct or retiring in order to escape dismissal for fraud dishonesty or misconduct shall at the discretion of the Company forfeit all or any part of his contributions and lose all benefit from the fund except such return (if any) as may at such discretion be made to him out of his own contributions.

Scheme not to operate unless Company registered.

37. Any scheme for the establishment of a superannuation fund under this Act shall not come into operation until the Company shall in respect of that fund have been registered under the Friendly

[4 EDW. 7.] *Alexandra (Newport and South Wales)* [Ch. cxciii.]
Docks and Railway Act, 1904.

Societies Act 1896 and the provisions of that Act (except the proviso to subsection (1) of section 8 and section 41) so far as they are applicable and are not inconsistent with the provisions of this Act shall apply as if—

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 ters under
 Friendly
 Societies Act.

(A) The Company were a society to which that Act applies and the directors of the Company were the trustees of such society;

(B) As if the scheme were the rules of such society;

(C) As if the superannuation funds were the funds of such society; and

(D) As if the contributors to the fund were the members of such society.

38. The Company shall not be bound to recognise or see to the execution of any assignment or of any trust (whether express implied or constructive) relating to any contributions of any contributing member to the fund or the interest thereon or additions thereto but the receipt of the contributing member for the same or (if he is dead) of his legal personal representatives or the person or persons to whom the same may be paid under the authority of this Act shall be a sufficient discharge to the Company in respect thereof notwithstanding any assignment thereof or any trust to which the same may be subject and whether or not the Company have had notice (express implied or constructive) of any such assignment or trust or of any charge or incumbrance upon any such contributions or the interest thereon or additions thereto or any part thereof respectively and the Company shall not be bound to see to the application of any money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application thereof.

Company not
 to regard
 trusts or
 assignments.

39. The Company shall supply a copy of any scheme for the time being in force under this Act at a price not exceeding sixpence to any officer or servant of the Company or to in case of death the representatives of any such officer or servant and shall supply gratuitously to every officer or servant or other person having an interest in the superannuation fund a copy of the last annual balance sheet of the same for the time being and the Company shall keep a copy of the last annual balance sheet of the superannuation fund for the time being with the report of the auditors thereon for the time being and a copy of the last quinquennial valuation for the time being of the said fund always exhibited in a conspicuous place at the principal office of the Company.

Copies of
 scheme.

A.D. 1904.

Special provision in case of certain officers and servants.

40. Where any officer or servant of the Company who before entering the service of the Company (whether before or after the passing of this Act) was a contributor to any superannuation or provident fund of any railway or other company has on entering the service of the Company lost his title to a superannuation or retiring allowance from such railway or other company the directors of the Company may if they see fit (notwithstanding anything in this Act or in any scheme made under this Act) permit such person to become a contributor to any fund established under the provisions of this Act and may permit him to reckon his years of service with such railway or other company and his contributions to the superannuation or provident fund of such railway or other company as if such service had been service with the Company and as if such contributions had been made to a superannuation fund established under this Act and generally may regulate the terms and conditions of his becoming a contributor and the amount of his superannuation or retiring allowance as they may deem just and equitable.

Company exempted from provisions of Life Assurance Acts.

41. Nothing in or done under this Act shall be deemed or construed to render the Company or the fund liable to any of the provisions of the Life Assurance Companies Acts 1870 to 1872.

SAVINGS BANK.

Power to establish savings bank.

42. The Company may if they think fit establish a savings bank and with respect to any savings bank so established the following provisions shall apply:—

- (1) The Company may establish a savings bank with or without branches as they may think fit and may thereat receive by way of deposit from any of their officers clerks servants workmen or apprentices and from the wives and children (being minors) of such officers clerks servants workmen or apprentices any money at interest and may make rules for the management of such savings bank :
- (2) Every such deposit with the interest thereon shall be a charge on the net profits of the Company's undertaking next after the mortgage and other debts of the Company and the interest on their debenture stock :
- (3) Two copies of the rules of the savings bank and of every amendment of the same from time to time (the term amendment to include a new rule and the cancelling of

a rule) under the hands of two of the directors and of the secretary or general manager of the Company shall be sent to the Chief Registrar of Friendly Societies (hereinafter referred to as "the registrar"):

(4) Such rules shall contain provisions—

(A) For the management of the savings bank ;

(B) If thought fit for the appointment and discharge of trustees ;

(C) For the payment in and the withdrawal of deposits the rate of interest thereon and the payment of such interest ;

(D) For the keeping and auditing of accounts ;

(E) For the balancing of accounts once a year at least and the sending on or before the thirty-first day of May in every year to the registrar a general statement (to be called the annual return) of the receipts and expenditure funds and effects of the savings bank as audited and made out to the thirty-first day of December then last inclusively with a copy of the auditor's report (if any) ;

(F) For supplying every depositor on demand with a copy of the rules for the time being at a price not exceeding sixpence and with a copy of the annual return gratuitously ;

(G) For keeping a copy of the last annual return with the auditor's report (if any) always hung up in a conspicuous place at the chief office of the savings bank ;

(H) For giving notice to the registrar of any change in the chief office and of the appointment of any new trustees :

(5) The registrar on being satisfied that the rules or that any amendment of rules of the savings bank are or is in conformity with law and with the provisions of this section shall issue to the Company an acknowledgment of registry of the rules or of such amendment of rules which shall be conclusive evidence that such rules or amendment of rules are or is duly registered :

A.D. 1904.

- (6) The rules when so registered shall be binding on the Company and its officers and on the depositors and their executors administrators and nominees Unless otherwise provided by the rules the Company shall be deemed to be the trustees of the savings bank :
- (7) Deposits may if the rules so allow be received from or on account of married women in the employment of the Company and such deposits shall be deemed to be the separate property of such women and the same shall be accounted for and paid to such women as if they were unmarried and their receipts shall be a valid discharge to the Company :
- (8) Deposits may if the rules so allow be received from or on behalf of infants and infants above the age of sixteen years may execute all instruments and give all acquittances necessary to be executed or given under the rules but all instruments and acquittances relating to the deposits of infants under the age of sixteen shall be executed or made by their parents or guardians :
- (9) Section 49 and sections 54 to 68 inclusive of the Friendly Societies Act 1896 shall apply mutatis mutandis to the savings bank as if it were a registered society and to the depositors therein as if they were members :
- (10) Section 100 of the Friendly Societies Act 1896 shall apply to any instrument or document copy or extract of an instrument or document to be executed or issued by the registrar for the purposes of this section A copy of the rules under the seal of the Company shall also be evidence of such rules.

MISCELLANEOUS.

Limits of
dockmaster's
jurisdiction.

43. The limits within which the powers of the dockmaster of the Company for the regulation of the dock and works by this Act authorised may be exercised shall be the limits of such of the lands delineated on and described in the deposited plans and the book of reference as shall be acquired by the Company under the powers of this Act above high-water mark and the spaces lying within a distance of one hundred and fifty yards measured in all directions in the River Usk from the outer gates of the Company's North and South Locks respectively and the space

lying between high-water mark and a line drawn at a distance of fifty feet riverwards from and parallel to the wharf shown on the deposited plans and extending from the North Lock North Pier shown on the deposited plans to a point one hundred and fifty feet north-west of Jetty No. 2 shown on the deposited plans. A.D. 1904.

44. Sections 71 to 82 (both included) of the Alexandra (Newport) Dock Act 1865 (which relate to tonnage rates on vessels and other rates and matters) as amended by any of the recited Acts shall apply in the case of the South Dock as extended and of the works and conveniences authorised by this Act and of the vessels passengers and goods using the same as if those sections were re-enacted in this Act. Application of provisions of existing Acts as to rates and other matters.

45. Sections 64 65 and 66 of the Alexandra (Newport) Dock Act 1865 and section 11 of the Alexandra (Newport) Dock Act 1873 (which sections relate to leases of lands of the Company) shall extend and apply to all lands acquired by the Company under the powers of this Act. Application of leasing powers of Company.

46. The Company may supply hydraulic power to any person company or authority desirous of taking such a supply from the Company upon and subject to such terms and conditions as may be agreed between the Company and such person company or authority. Company may supply hydraulic power

47. Notwithstanding any provision of the recited Acts the number of directors of the Company shall be such number not being less than four (exclusive of the directors appointed by the Great Western Railway Company or any other company for the time being) nor more than eight (exclusive as aforesaid) as the directors may from time to time resolve and the quorum of a meeting of directors for the transaction of business shall be three unless and until the directors resolve that it shall be a larger number. Number and quorum of directors.

48. The Company may from time to time enter into agreements with the present Lord Tredegar and his sequels in estate and with the trustees or trustee of the Tredegar Settled Estates (he and they being empowered by Act of Parliament or otherwise so to agree with the Company) with respect to the taking and holding of shares or stock in the capital of the Company by Lord Tredegar or the said trustees or trustee and with respect to the royalties receivable by Lord Tredegar and his sequels in estate under the Power to make agreements with Lord Tredegar.

[Ch. cxcii.] *Alexandra (Newport and South Wales)* [4 Edw. 7.]
Docks and Railway Act, 1904.

A.D. 1904. recited Acts or this Act and with respect to any other matter arising in the execution of the provisions of this Act.

Charges for watchmen.

49. In cases where in order to guard against risk of fire or explosion the Company place any watchman or watchmen on board any vessel using any dock or work of the Company the expenses of the employment of such watchman or watchmen shall be recoverable as if they were tonnage rates payable in respect of such vessel under the recited Acts.

Repeal of proviso to section 103 of Newport Dock Act 1835.

50. The following words in section 103 of the Newport Dock Act 1835 (that is to say) "Provided always that such dues shall not be reduced under any circumstances whether upon ships or vessels which shall not exceed one hundred tons burthen so as to be less than twopence per ton for going into and departing from the said dock" are hereby repealed.

Repeal of part of Act of 1896.

51. Section 14 of the Alexandra (Newport and South Wales) Docks and Railway Act 1896 is hereby repealed.

Prevention of betting within dock limits.

52. Any person who shall frequent and use any part of the docks or of the Company's premises or any building or place within the limits of the dock as extended by this Act either on behalf of himself or any other person for the purpose of book-making or betting or wagering or agreeing to bet or wager with any other person or for the purpose of any other form of gambling shall be liable to a penalty not exceeding five pounds.

For protection of commissioners of sewers for levels of Caldicot and Wentlooge.

53. For the protection of the commissioners of sewers for the levels of Caldicot and Wentlooge (in this section called "the commissioners") the following provisions shall unless otherwise agreed in writing between the commissioners and the Company have effect with respect to the construction and maintenance of the works by this Act authorised so far as they interfere with or affect the commissioners of the said levels or any works under the jurisdiction of the commissioners (that is to say):—

- (1) In this section the plan means a plan signed in duplicate by Cuthbert Arthur Brereton on behalf of the Company and by Walter Stafford Gustard on behalf of the commissioners showing the intended position of the diverted river the new sea bank and the diversion of the wharf reën of which plan one copy shall be deposited with and kept by the secretary of the Company and the other copy shall be deposited with and

[4 EDW. 7.] *Alexandra (Newport and South Wales)* [Ch. cxciii.]
Docks and Railway Act, 1904.

kept by the clerk to the commissioners Provided A.D. 1904.
always that the Company may in the execution of
any of the works shown on the deposited plans and
sections deviate from the lines and levels shown on the
deposited plans and sections to such extent as is by this
Act authorised :

- (2) Before commencing the diversion of the River Ebbw (by this Act authorised) the Company shall construct a new sea bank on the western side thereof of the length necessary to enable it to be securely tied (the expense of such tying to be borne and paid by the Company) at each end into the existing sea bank and having throughout a minimum height of twenty-seven feet above Ordnance datum and a minimum width of seven feet at the top and a uniform slope of two to one on either side. Such new sea bank when constructed shall be deemed to be in substitution for so much of the existing sea bank as will after the completion of the diversion be situate to the eastward of the western side of the River Ebbw as diverted and the Company shall bear and pay any expenditure properly incurred by the commissioners in maintaining the said new bank over and above the sum or sums from time to time contributed by the owner or owners for the time being of the Tredegar Settled Estates :
- (3) The Company shall before commencing such river diversion divert the existing wharf reen by the construction of a new reen which shall be situated on the western side of the said new sea bank and shall have throughout a minimum width of twelve feet at the top and five feet at the bottom and a depth of not less than five feet and shall be of sufficient length to properly connect with the existing wharf reen at each end :
- (4) The distance between the base of the new sea bank and the western bank of the said river when diverted shall not be less than sixty feet nor more than one hundred feet and the distance between the base of the said new sea bank and the eastern bank of the said diverted reen shall not be less than twenty feet :
- (5) All works to be executed by the Company under the provisions of this section shall be executed at their

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own cost in all things and under the superintendence and to the reasonable satisfaction of the commissioners or their engineer and in accordance with plans sections and specifications to be submitted to and approved by them before the commencement of such works Provided that if the commissioners fail for a period of twenty-one days after the submission of the plans sections and specifications to express their disapproval thereof or their requirements in relation thereto they shall be deemed to have approved thereof The Company shall reimburse the commissioners the reasonable cost incurred by them in the examination of the said plans sections and specifications and in such superintendence :

- (6) If the Company destroy cut through pull down or in any way weaken injure or interfere with any earth bank sea wall or other works under the jurisdiction of the commissioners other than such as may be situate to the eastward of the River Ebbw as diverted and the said new sea bank and wharf reën to the westward of the River Ebbw as diverted the Company shall at their own cost and expense in all things restore or reconstruct such earth bank sea wall or other works to the reasonable satisfaction of the commissioners or their engineer :
- (7) For the purpose of enabling the commissioners to repair and maintain the new sea bank and wharf reën hereinbefore mentioned the Company shall provide at such places (not being more than two in number) as the commissioners may prescribe reasonably convenient means of access from the western side of the wharf reën as proposed to be diverted to the lands intervening between that reën and the new sea bank to be constructed and thence across such bank to the lands intervening between the eastern side of that bank and the river as proposed to be diverted and shall maintain the access so provided :
- (8) The Company shall also provide and maintain such works as may be required for giving access for carts across the existing reëns on either side of the new sea bank between the diverted wharf reën and the western side of the river as diverted ;

[4 EDW. 7.] *Alexandra (Newport and South Wales)* [Ch. xciii.]
Docks and Railway Act, 1904.

- (9) The Company shall at all times be responsible to the commissioners for any injury that may be done or occasioned to the lands within the jurisdiction of the commissioners or to the drainage of or the works for protecting or preserving such lands through the neglect or default of the Company or the effect or operation of their works and shall indemnify the commissioners against any claims which may be made by Lord Tredegar and the trustees of his settled estates in respect of the abandonment or disuse of any works of the commissioners for which the sea bank and the diverted reën are substituted: A.D. 1904.
- (10) Nothing contained in or done under the powers of this Act shall alter or affect the rights of the commissioners with respect to the levying of rates within the area from time to time subject to their jurisdiction:
- (11) If any difference shall arise between the Company and the commissioners in relation to the meaning of anything contained in this section or to any of the works to be executed or to any matters or things to be observed or done by the Company under this section the question in difference shall be referred to an arbitrator to be appointed by the President of the Institution of Civil Engineers for the time being on the application of either party and the provisions of the Arbitration Act 1889 shall apply in the case accordingly.

54. For the protection of the mayor aldermen and burgesses of the county borough of Newport (hereinafter called "the corporation") the following provisions shall unless otherwise agreed in writing between the Company and the corporation have effect with respect to the construction and maintenance of the works by this Act authorised:— For protection of Newport Corporation.

- (1) Before commencing any works mentioned in the section of this Act the marginal note whereof is "Power to make and maintain dock extension and other works" which shall involve any interference with the banks or sea defences or other works now under the jurisdiction of the corporation as successors of the commissioners of sewers of the levels of Caldicot and Wentlooge in pursuance of the Newport Corporation Act 1900 section 54 and before in any way interfering

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with any such banks or river walls or other works the Company shall at their expense construct new banks and river walls or other works on the east side of the River Ebbw as proposed to be diverted in lieu of any existing banks and river walls or other works on the east side of the existing River Ebbw for the purpose of effectually protecting the lands on the east side of the River Ebbw as proposed to be diverted from flooding and for such purpose shall construct proper and efficient wing banks or walls for the purpose of connecting and joining up the existing banks or walls with the new banks or walls to be constructed as aforesaid. Such works shall be constructed between such points and in such manner as shall be agreed between the surveyor of the corporation and the engineer of the Company or failing agreement as may be determined by arbitration in manner hereinafter provided :

- (2) Before the Company shall be entitled to interfere with any sewers ditches reens sluices or other works which are necessary for the purpose of enabling the corporation to carry out their obligations as commissioners of sewers as regards the drainage of lands within the county borough they shall at their expense construct such other sewers ditches reens sluices or other works in substitution for any such sewers ditches reens sluices or other works as may be interfered with as shall be agreed upon between the surveyor of the corporation and the engineer of the Company to be necessary or failing agreement as may be determined by an arbitrator to be appointed as hereinafter provided for the purpose of securing the proper drainage of the lands now within the county borough and to prevent the flooding of such lands as effectually as the existing works and in addition concurrently with the construction of Work B mentioned in the said section of this Act the Company shall at the like expense construct such other reens ditches and sluices on the east side of the River Ebbw as diverted and between the point of diversion of the River Ebbw and the River Ebbw as the same exists at the date of the passing of this Act as in like manner may be agreed

[4 Edw. 7.] *Alexandra (Newport and South Wales)* [Ch. cxciii.]
Docks and Railway Act, 1904.

upon or determined to be necessary for the purpose of securing the proper drainage of the lands situated between such points and which lands upon completion of Work B aforesaid in pursuance of section 5 of the Newport (Monmouthshire) Improvement Act 1876 are included within the borough :

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- (3) The Corporation shall have the same rights powers authorities and duties with regard to any banks river walls or other works or any sewers ditches reens sluices or other works which shall be constructed or made by the Company in pursuance of subsections (1) and (2) of this section as the corporation now have with reference to the banks river walls or other works or any sewers ditches reens sluices or other works for which such first-mentioned works shall be substituted and all persons shall be subject to the same liabilities with reference to the maintenance and repair or contributions for repair of any such substituted works as they are under with reference to the existing works for which the same shall be substituted :
- (4) If the construction of any of the works authorised by the section of this Act of which the marginal note is "Power to make and maintain dock extension and other works" or of any subsidiary or other works shall render unnecessary the construction of any of the new banks or sea walls to be constructed by the Company as hereinbefore provided for the purpose of preventing the flooding of the lands on the east side of the River Ebbw as proposed to be diverted then the obligation to construct any such new banks or river walls which may be so rendered unnecessary shall cease as from the date when it shall be decided under the provisions of this section that any such works shall be unnecessary and the Company shall thereafter repair and maintain any such works as aforesaid (and which works shall be indicated on a plan to be signed by the engineer of the Company and the surveyor of the corporation) so as to effectually prevent any flooding of the lands on the east side of the River Ebbw as proposed to be diverted The question as to whether the construction of any such works as aforesaid has rendered unnecessary the

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construction of any new banks or sea walls to be constructed by the Company under the provisions of this section shall in default of agreement be settled by arbitration :

- (5) All works to be executed by the Company under the provisions of this section shall be executed at their own cost in all things and to the reasonable satisfaction of the corporation or their surveyor and in accordance with plans sections and specifications to be agreed or settled by arbitration in manner aforesaid before the commencement of such works Provided that if the corporation fail for a period of twenty-eight days after the submission of the plans sections and specifications to express their disapproval thereof or their requirements in relation thereto they shall be deemed to have approved thereof :
- (6) The Company shall at all times be responsible to the corporation for any injury that may be done or occasioned to any lands within the jurisdiction of the corporation or to the drainage thereof or the works for protecting or preserving such lands through the neglect or default of the Company or the effect or operation of their works :
- (7) Nothing contained in or done under the powers of this Act shall alter or affect the rights of the corporation with respect to the levying of rates or rentcharges within the boundary of the borough as the same shall exist after the diversion of the River Ebbw or alter or affect the rights and interests of the Company or of the corporation under section 30 of the Caldicot and Wentlooge Level Act 1884 or section 63 of the Newport Corporation Act 1900 :
- (8) If any difference shall arise between the Company and the corporation in relation to the meaning of anything contained in this section or as to the necessity of any of the works to be executed or to any matters or things to be observed or done by the Company under this section the question in difference shall be referred to an arbitrator to be appointed by the President of the Institution of Civil Engineers for the time being on the application of either party and the provisions of the Arbitration Act 1889 in respect of any such arbitration shall apply accordingly.

55. Whereas by section 5 of the Newport Corporation Act 1876 it is enacted as follows:—

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As to lands
on east side
of River
Ebbw.

“The borough (meaning the county borough of Newport) shall comprise the district described in the First Schedule to this Act annexed. Provided always that if at any time hereafter the course of the River Ebbw mentioned in that schedule shall be altered under the powers of any Act passed or to be passed the centre of that river as altered shall be substituted for the centre of that river as now existing as part of the boundary of the borough”:

And whereas upon the completion of the diversion of the River Ebbw as mentioned in section 4 of this Act the marginal note whereof is “Power to make and maintain dock extension and other works” the lands situated between the River Ebbw as proposed to be diverted and the River Ebbw as the same existed at the date of the passing of this Act will by virtue of the said section 5 of the Newport Corporation Act 1876 be included within the borough:

And whereas under and by virtue of the Newport Corporation Act 1900 all the rights powers authorities and privileges of or exercisable by the commissioners of sewers for the levels of the hundreds of Caldicot and Wentlooge in the county of Monmouth including the Green Moor Roggiett and Caldicot enclosures herein referred to as “the commissioners of sewers” within the county borough of Newport and all the rights powers and property of the commissioners of sewers in and over any river stream watercourse sewer ditch bank river wall bridge hatch dam floodgate lock or other work situate within such borough were transferred to the mayor aldermen and burgesses of the county borough of Newport in this section referred to as “the corporation”:

And whereas it is expedient that the provisions should be made as hereinafter contained with reference to the jurisdiction of the corporation as commissioners of sewers as aforesaid in respect of the said lands hereinbefore referred to It is hereby enacted as follows:—

- (1) On completion of Work B referred to in the said section of this Act the marginal note whereof is “Power to make and maintain dock extension and other works” the commissioners of sewers shall cease to have or exercise any jurisdiction over the lands situate on the east side of the River Ebbw as diverted and the corporation shall as from such date have and

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may exercise over such lands all the rights powers authorities and privileges of or exerciseable or enjoyed by the commissioners of sewers or any one or more of them or any court of sewers or other meeting of the commissioners of sewers or any official appointed by them whether under charter commission letters patent Act of Parliament decree ordinance or otherwise howsoever to the same extent and in the same manner as if such lands had been included within the borough at the date of the passing of the Newport Corporation Act 1900 and Part IV. of such Act except section 56 shall as from the date of completion of such works be read and have effect as if such lands had been included within the borough :

- (2) All duties imposed upon the commissioners of sewers with respect to and all rights powers and authorities of the commissioners of sewers in and over any river stream watercourse or any sewers ditches banks river walls hedges dams floodgates locks or other works situated on such lands shall devolve upon and be discharged by and vested in the corporation to the same extent and in the same manner as if such lands had been included within the borough at the date of the passing of the Newport Corporation Act 1900 :
- (3) An equitable adjustment respecting all financial matters shall be made between the commissioners of sewers and the corporation by agreement within twelve months after the completion of Work B and in default of such agreement by an arbitrator to be appointed on the application of either party by the Board of Agriculture and Fisheries :
- (4) The basis for the adjustment shall be the rateable value for poor law purposes of the lands transferred upon which the annual level rate is leviable at the date of the completion of the river diversion by this Act authorised and in such adjustment regard shall be had to the existing liabilities of the commissioners of sewers in respect of the portion of their district transferred under the powers of this Act and to the consideration that the commissioners of sewers are not to be placed in any worse financial position by reason

4 Edw. 7.] *Alexandra (Newport and South Wales) [Ch. cxciii.]*
Docks and Railway Act, 1904.

of the transfer by this Act authorised as aforesaid regard being had to the rateable value aforesaid of the lands transferred by this Act and also regard being had to any saving of liability or saving of expenses of the commissioners of sewers in the future by reason of the transfer by this Act authorised :

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- (5) Such adjustment shall also provide that the area transferred from the jurisdiction of the commissioners of sewers to the corporation shall be liable for the cost of the works remaining under the jurisdiction of the commissioners of sewers which in the absence of any default on the part of any persons liable may sustain damage by an extraordinary flood or tempest and that the area retained by the commissioners of sewers shall be liable to the cost of the repair of any works within the area transferred which in the absence of any default on the part of other persons liable may sustain damage by an extraordinary flood or tempest and such liability shall be ascertained and fixed in the proportion which the rateable value as aforesaid of the lands transferred bears to the rateable value of the rest of the area under the jurisdiction of the commissioners and of the area already transferred to the corporation by the Newport Corporation Act 1900.

56. For the protection of the Newport Harbour Commissioners (in this section called "the commissioners") the following provisions unless otherwise agreed between the commissioners and the Company shall have effect:—

For protection of Newport Harbour Commissioners.

- (1) Nothing in this Act contained shall be deemed to authorise the Company either during the execution of the works by this Act authorised or afterwards without the consent of the commissioners first had and obtained in writing to make or construct any permanent embankment wall quay wharf jetty stage landing-place or other like work below high-water mark in the River Usk or the River Ebbw other than and except the works which are shown and defined on the deposited plans as intended to be constructed in such rivers :
- (2) The Company shall not in the construction of the wharf the Pier or Jetty No. 1 the Pier or Jetty No. 2 and the

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North Pier Extension by this Act authorised deviate laterally riverwards from the lines (as shown on the deposited plans) of any portion of such works which will be situate below high-water mark and in constructing such wharf piers and pier extension the Company shall as far as may be practicable use open work consisting of wood or other piles and open framing and not in the form of continuous embankments and in the event of the Company removing or interfering with any landing-stage mooring mooring-post mooring-chain buoy or other erection or appliance belonging to the commissioners under the powers of this Act the Company shall forthwith reinstate or substitute new landing stages moorings mooring-posts mooring-chains buoys or other erections or appliances in substitution for those so removed or interfered with as aforesaid in such position as shall be reasonably approved by the commissioners and to their reasonable satisfaction :

- (3) Before constructing any portion of the dock extension or other works in connection therewith in any portion of the River Ebbw below high-water mark and before in any way interfering with such river under the powers of this Act the Company shall make and complete work B referred to in the section of this Act the marginal note whereof is "Power to make and maintain dock extension and other works" being the diversion of the River Ebbw and in the making or construction of such dock extension or any works in connection therewith the Company shall not be entitled to deviate from the lines and levels shown on the deposited plans and sections in such a manner as to interfere in any way with the River Ebbw as proposed to be diverted :
- (4) The powers by this Act granted to the Company of dredging scouring and deepening the bed shore and soil of the Rivers Usk and Ebbw other than such dredging scouring and deepening as shall be necessary for the execution of the works shown on the deposited plans and sections and by this Act authorised shall be exercised only with the previous consent and approval in writing of the commissioners and under their superintendence and to their satisfaction and in the construction

of any berth or other work adjoining the said wharf piers or jetties or in the carrying out of their powers of dredging in connection therewith the Company shall not cause the bottom or bed of the river to be raised above its present or existing level : A.D. 1904.

- (5) If in or by reason of the execution of the powers of this Act the navigation of the River Usk or the River Ebbw shall be prejudicially affected the Company shall forthwith at their own expense by dredging or otherwise to the reasonable satisfaction of the commissioners rectify as far as may be practicable such injury :
- (6) The Company shall not take or interfere with any portion of the breakwater or bank erected by the commissioners and numbered 96 (parish and county borough of Newport) in the deposited book of reference and in the event of the Company taking or interfering with any pilots' house or shelter erected by the commissioners or any beacons or lights erected by the commissioners the Company shall forthwith erect and construct and hand over to the commissioners a new pilots' house or shelter and beacons or lights in substitution for those removed or interfered with as aforesaid in such positions as shall be reasonably approved by the commissioners and to their reasonable satisfaction :
- (7) Notwithstanding the passing of this Act or anything therein contained all rules byelaws and regulations made or ordained or to be made or ordained by the commissioners shall be of full force and validity and the powers of any harbour master dock master or pier master appointed or to be appointed by the Company whether such powers are conferred by this or by any previous Act shall so far as the same affect the navigation of the River Usk or the River Ebbw be exercised by him subject to the order jurisdiction and control of the harbour master or water bailiff for the time being of the commissioners :
- (8) Nothing in this Act contained shall extend to prejudice or derogate from any of the rights and privileges of the commissioners excepting so far as by this Act is expressly provided :

A.D. 1904.

(9) Nothing in this Act contained shall be construed to exempt any vessel which shall go into enter or use the docks or works of the Company (including the proposed dock extension and wharf piers and jetties) from the rates and duties which the commissioners are entitled to levy and receive under the Acts relating to them in respect of vessels going into entering or using the port or harbour of Newport and the commissioners may have use and exercise all such and the same powers and remedies for ascertaining the tonnage of all such vessels and for demanding receiving and recovering the rates by those Acts made payable to them in respect of vessels entering or using the said docks or works or otherwise in relation thereto as are by the said Acts granted in respect of such rates and duties to the commissioners and for such purpose the said docks and works shall be deemed and taken to be part and parcel of the port and harbour of Newport :

(10) The River Ebbw as diverted under the powers of this Act and the banks and shores thereof and any works thereon shall be deemed to be included within the port or harbour of Newport as defined by the Newport (Monmouthshire) Harbour Act 1890 :

(11) If at any time hereafter any difference shall arise between the Company and the commissioners with respect to any of the provisions of this Act or any matter or thing therein contained such difference shall be referred to the decision of an arbitrator to be agreed upon between the Company and the commissioners or if they cannot agree then by an arbitrator to be appointed by the Board of Trade upon the application of either party.

Facilities for
traffic of
London and
North West-
ern Railway
Company.

57. The London and North Western Railway Company shall have power to use with their own engines carriages or servants any railways which the Company may construct in connection with the extension of their existing South Dock and works by this Act authorised so as to ensure to that company a sufficient communication at all suitable times to and from the said dock and works for the unloading and loading of minerals and merchandise provided that such use shall be subject to the reasonable byelaws and regulations of the Company.

[4 EDW. 7.] *Alexandra (Newport and South Wales)* [Ch. cxciii.]
Docks and Railway Act, 1904.

The terms and conditions pecuniary and otherwise upon which such use shall be enjoyed shall if not agreed upon between the Company and the said railway company be determined by an arbitrator to be appointed on the application of either Company by the Board of Trade. A.D. 1904.

58. Nothing in this Act contained shall affect or prejudice the rights of the Great Western Railway Company under section 33 (the marginal note of which is "As to terminals") of the *Alexandra (Newport and South Wales) Docks and Railway Act 1897* but the provisions of the said section shall extend and apply to the dock extensions and other works by this Act authorised and the Great Western Railway Company shall be entitled to all the rights and facilities over the undertaking of the Company as defined by this Act which they have over the existing undertaking of the Company. For protection of Great Western Railway Company.

59. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any Standing Order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to execute any other work or undertaking. Deposits for future Bills not to be paid out of capital.

60. Offences against this Act or against any byelaw made under this Act may be prosecuted and penalties recovered before a petty sessional court by any officer of the Company authorised either generally or specially in that behalf. Recovery of penalties.

61. All costs charges and expenses of and incident to the preparing for obtaining and passing this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

A.D. 1904. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

HEADS OF AGREEMENT made the ninth day of March one thousand nine hundred and four between The Right Honourable GODFREY CHARLES LORD TREDEGAR BARON TREDEGAR OF TREDEGAR in the county of Monmouth of the first part SIR GEORGE FERDINAND FORESTIER WALKER Baronet of Castleton in the county of Monmouth a Major in His Majesty's Army (retired) and HENRY EDZELL MORGAN LINDSAY of Ystrad Mynach in the county of Glamorgan Esquire Lieutenant-Colonel of His Majesty's Royal Monmouthshire (Militia) Engineers (hereinafter called "the trustees") of the second part and the ALEXANDRA (NEWPORT AND SOUTH WALES) DOCKS AND RAILWAY COMPANY (hereinafter called "the Company") of the third part.

WHEREAS in pursuance of the Alexandra (Newport) Dock Act 1865 and the Acts amending the same the Company has constructed docks and warehouses and other works upon lands forming part of Lord Tredegar's settled estates in the parish of Saint Woollos and county borough of Newport in the county of Monmouth and parts of the said lands have been conveyed by the late Lord Tredegar to the Company in pursuance of an agreement known as the Land Agreement of 1864 which was scheduled to and confirmed by the said Act of 1865 :

And whereas further dock accommodation is now urgently needed to meet the requirements and development of traffic :

And whereas to meet the requirements aforesaid the Company has introduced into Parliament a Bill for empowering them to extend their existing South Dock and to construct other works shown on the deposited plans referred to in the said Bill :

And whereas Lord Tredegar with a view of facilitating the making of the proposed dock extension and other works is willing to convey and assure to the Company in the event of the requisite Parliamentary authority being obtained for the purpose all or so much of the lands situate in the parishes of

[4 EDW. 7.] *Alexandra (Newport and South Wales)* [Ch. cxciii.]
Docks and Railway Act, 1904.

Saint Brides Wentloog Bassaleg and Saint Woollos and parish and county borough of Newport and containing two hundred and fifty-seven acres or thereabouts and forming part of the settled estates and shown on the plans deposited for the purpose of the said Bill as may be required by the Company for making and maintaining the said dock extension and other works and conveniences connected therewith: A.D. 1904.

And whereas the plan annexed hereto shows the lands which are required for the intended dock extension and other works aforesaid and which lands are thereon edged pink:

Now it is hereby agreed by and between the parties hereto as follows:—

1. Lord Tredegar and the other necessary parties claiming under the present limitations of the Tredegar Settled Estates will assist the Company in obtaining the proposed Act of Parliament and if such Act be obtained such of the lands shown on the plan and edged pink as may from time to time be required by the Company for the said dock extension and other works shall be conveyed and assured to the Company accordingly:

Provided always that the Company shall not by virtue of this agreement be entitled to have any lands conveyed or assured to them other than and besides such lands as it shall be from time to time agreed in writing between Lord Tredegar or his sequels in estate and the trustees or other the trustees or trustee for the time being of the Tredegar Settled Estates and the Company are required for the said dock extension and other works of the Company or for the proper and convenient working and enjoyment thereof or for access thereto and any lands which the Company may be entitled to require to be so conveyed or assured to them shall be selected with a view to causing as little damage or injury as may be to the remaining adjoining parts of the Tredegar Settled Estates. If any dispute shall arise between Lord Tredegar or his sequels in estate and the trustees or other the trustees or trustee for the time being of the Tredegar Settled Estates and the Company as to whether any lands are required for such purposes or as to whether any particular lands are so required the question in dispute shall be referred to an engineer to be appointed by the Board of Trade and the decision of such engineer shall be final and binding on all parties. Provided also that the Company shall not under the provisions of this agreement be entitled to require any lands to be conveyed or assured to them after the expiration of eight years from the date of the passing of the Act confirming this agreement. Provided further that the Company shall not be entitled to have conveyed to them any land westward of the centre line of the River Ebbw as diverted as proposed by the said Bill but shall as regards any land westward of such line be entitled only to an easement or right of constructing and maintaining the proposed diversion of that river as shown on the said deposited plans and other works connected therewith.

2. Before being entitled to require any lands to be conveyed or assured to them under the foregoing provisions of this agreement the Company shall

[Ch. cxiii.] *Alexandra (Newport and South Wales) [4 EDW. 7.]
Docks and Railway Act, 1904.*

A.D. 1904. — give to Lord Tredegar or his sequels in estate and also to the trustees or other the trustees or trustee for the time being of the Tredegar Settled Estates two calendar months' notice in writing accompanied by a plan indicating the lands which they require to have so conveyed or assured to them and the general nature of the works for which such lands are required.

3. The Company shall after taking possession of any land under the provisions of this agreement forthwith proceed to construct and with all due diligence complete the works for which such lands were required in accordance (save so far as may be otherwise agreed with Lord Tredegar or the trustee or trustees of the Tredegar Settled Estates) with the notice given as aforesaid.

4. Notwithstanding anything hereinbefore contained on completion of the said dock extension and of the river diversion mentioned in paragraph B of the clause of the said Bill whereof the marginal note is "Power to make and maintain dock extension and other works" the Company shall be entitled to require Lord Tredegar and the other necessary parties claiming under the present limitations of the Tredegar Settled Estates to convey and assure to the Company all the lands delineated or shown on the plan annexed hereto which lie to the eastward of the centre line of the River Ebbw as diverted as proposed by the said Bill :

Provided always that the Company shall not under the provisions of this clause be entitled to require any lands to be conveyed or assured to them after the expiration of ten years from the date of the passing of the Act confirming this agreement.

5. The consideration for the conveyance or conveyances hereby agreed to be made to the Company shall be a perpetual yearly rentcharge of such amount and to be charged and payable in like manner as the rentcharge reserved by Article 7 of the Land Agreement of 1864 which is set forth in Schedule C to the Alexandra (Newport) Dock Act 1865 and Articles 7 and 9 to 11 of that agreement (both included) and section 8 of the Alexandra (Newport and South Wales) Docks and Railway Act 1896 shall apply in the case of any lands to be conveyed and assured under this agreement as if they were expressly repeated and herein set forth.

6. Section 2 of the Alexandra (Newport and South Wales) Docks and Railway Act 1896 (which relates to the reverter of lands to Lord Tredegar) shall apply to all lands acquired by the Company under this agreement in like manner as the said section applies to lands acquired by the Company for the purpose of their undertaking under the Land Agreement of 1864.

7. Lord Tredegar and his sequels in estate shall have the possession and enjoyment of all such parts of the lands hereinbefore agreed to be conveyed of which the Company shall not for the time being be entitled to take possession under the terms of this agreement.

8. The Company shall give such facilities and accommodation works for the benefit of Lord Tredegar's estate adjoining any lands acquired by the

[4 EDW. 7.] *Alexandra (Newport and South Wales)* [Ch. cxciii.]
Docks and Railway Act, 1904.

Company under this agreement as shall be agreed between the engineers of Lord Tredegar or his sequels in estate and the Company or as in case of difference between them shall be determined by an engineer appointed by the Board of Trade and for ever thereafter maintain the same so far as they are situate on the property of the Company. A.D. 1904.

9.—(A) The Mendlegieff Road between the point R and the point S shown on the plan annexed hereto shall if and when required by Lord Tredegar or his sequels in estate by notice in writing be widened by the Company on the north side thereof to a width of 72 feet and the Company shall lengthen the existing bridge carrying their dock railway over that road so as to admit of such widening thereunder but nothing herein contained shall prevent the Company from erecting in the said road supporting columns for their bridge in the centre of the span of the bridge so long as there is left a clear space of road (including footpath) of not less than 35 feet on each side between the abutments of the bridge and such columns and the headway of such bridge shall be increased by six inches:

(B) The sides of the said existing bridge shall be faced with white glazed bricks or tiles and the Company shall at their own expense effectually light the road under the said bridge so far as may be necessary for the safety and convenience of the traffic passing over such road.

(C) Any further bridge constructed by the Company over the said road shall be constructed by the Company in accordance with the foregoing requirements as to the said existing bridge.

(D) Any land now forming part of the Tredegar Settled Estates required for the widening of the Mendlegieff Road on the north side thereof shall be provided by Lord Tredegar or his sequels in estate or his or their trustees free of charge.

10. If the Company shall under the powers given to them by the Act confirming this agreement make the diversion and straightening of the River Ebbw shown on the plan annexed hereto they shall at their own expense prior to commencing to make such diversion and straightening construct a sea bank at a distance not less than sixty nor more than one hundred feet to the west of the western edge of the channel of such diversion and straightening such sea bank to be connected at each end with the existing sea bank where it intersects the same and to have throughout a minimum height of twenty-seven feet above Ordnance datum and a minimum width of seven feet on the top and an uniform slope of two to one on either side and such sea bank to be in substitution for the existing sea bank.

11. The Company shall within six months from the date of the passing of the Act confirming this agreement convey to the existing uses of the Tredegar Settled Estates free of charge the piece of land shown on the plan annexed to this agreement and thereon coloured yellow.

12. This agreement shall only be binding on the Company in the event of the said Bill introduced by them as aforesaid being sanctioned by Parliament during the present session and shall only be binding on Lord Tredegar

[Ch. cxciii.] *Alexandra (Newport and South Wales)* [4 Edw. 7.]
Docks and Railway Act, 1904.

A.D. 1904. and the trustees in the event of an Estate Act empowering him and them in this behalf being obtained during the present session and this agreement is subject to such alterations (if any) as Parliament may see fit to make therein but if any material alteration is made herein either party shall be at liberty to withdraw from this agreement.

As witness whereof the Company have hereunto caused their common seal to be affixed and the other parties have hereunto set their hands the day and year first above written.

Signed sealed and delivered by the
above-named Lord Tredegar in
the presence of
J. E. W. RIDER
Lincoln's Inn
Solicitor.

TREDEGAR.

Seal.

Signed sealed and delivered by
the above-named Sir George
Ferdinand Forestier Walker in
the presence of
J. E. W. RIDER.

GEORGE F. FORESTIER
WALKER.

Seal.

Signed sealed and delivered by
the above-named Henry Edzell
Morgan Lindsay in the presence
of
J. E. W. RIDER.

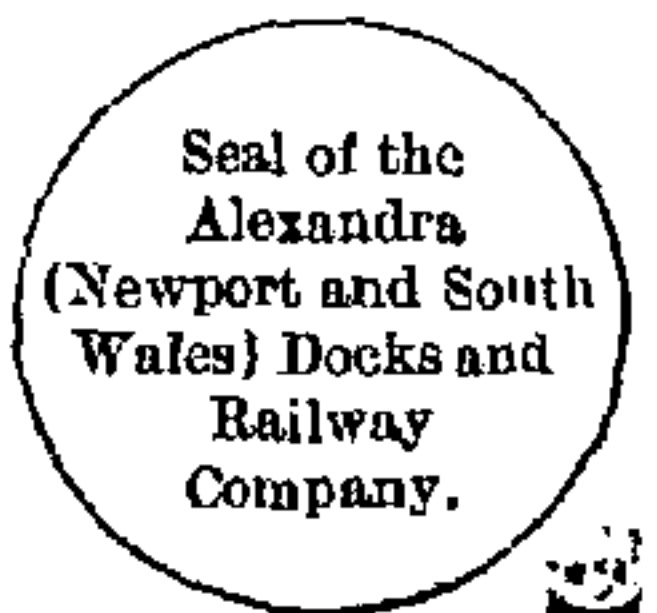
H. E. M. LINDSAY.

Seal.

The common seal of the Alexandra (Newport and
South Wales) Docks and Railway Company was
hereunto affixed by Order of the Board in the
presence of

EMANUEL M. UNDERDOWN
Director.

JNO. SMITH
Secretary



THE SECOND SCHEDULE.

A.D. 1904.

ARTICLES OF AGREEMENT dated the ninth day of March one thousand nine hundred and four and made between the ALEXANDRA (NEWPORT AND SOUTH WALES) DOCKS AND RAILWAY COMPANY (hereinafter called "the Company") of the one part and The Right Honourable GODFREY CHARLES LORD TREDEGAR BARON TREDEGAR OF TREDEGAR in the county of Monmouth of the other part.

WHEREAS the Company are seeking powers to issue for certain of the purposes of the Bill lately deposited by them in Parliament whereof the short title is "the Alexandra (Newport and South Wales) Docks and Railway Act 1904" (hereinafter referred to as "the Bill") consolidated stock A to an amount not exceeding £135,000 which stock when created and issued is to rank *pari passu* with and bear the same dividend payable at the same times as the existing consolidated stock A of the Company and consolidated stock B to an amount not exceeding £135,000 which stock when created and issued is to rank *pari passu* with and bear the same dividend payable at the same times as the existing consolidated stock B of the Company and preferred ordinary stock to an amount not exceeding £150,000 which stock when created and issued is for all purposes of dividend and otherwise to rank *pari passu* with and to be deemed to be part of the existing preferred ordinary stock of the Company :

And whereas the Company are desirous of being satisfied before proceeding with the Bill that the proposed issue of stock will raise sufficient cash for the purposes for which it is intended to be applied as well as of being able to give to the holders of the existing consolidated stocks A and B of the Company the assurance that the whole amount of the proposed issue of preferred ordinary stock will be subscribed for :

And whereas in these circumstances the Company have requested Lord Tredegar to subscribe for and take the whole of such preferred ordinary stock at the price hereinafter mentioned :

And whereas Lord Tredegar being largely interested in the Company has consented to subscribe for and take the whole of the proposed new issue of preferred ordinary stock at the price and on the terms and subject to the conditions hereinafter mentioned and the Company are advised and believe that this arrangement will be more advantageous to the Company than offering such preferred ordinary stock for public subscription :

And whereas it has also been agreed between the Company and Lord Tredegar that in consideration of his agreeing to subscribe for and take the whole of such preferred ordinary stock the surplus profits of the Company after paying the dividends on the consolidated stocks A and B and all prior

A.D. 1904. dividends and charges should be applied in paying dividends on the preferred and deferred ordinary stocks of the Company in manner hereinafter provided:

Therefore for the considerations above appearing it is hereby agreed between the Company and Lord Tredegar as follows (that is to say):—

1. The Company will if authorised by the Bill to issue the above-mentioned amounts of consolidated stocks A and B and of preferred ordinary stock create and issue to Lord Tredegar on or before the 25th day of March 1905 the amount of £75,000 of the said preferred ordinary stock and from time to time such further amounts thereof as hereinafter provided such stock to be paid for in cash by Lord Tredegar at the price of £95 for every £100 of such stock.

2. Lord Tredegar hereby agrees and undertakes to accept the said amount of £75,000 of the said preferred ordinary stock to be issued to him by the Company as aforesaid.

3. If at any time within five years from the date of the passing of the Bill into an Act consolidated stock A and consolidated stock B or either of those stocks to the amount of £150,000 shall have been issued and accepted and twenty per cent. thereof shall have been paid up and the Company shall desire Lord Tredegar to accept any further amount of the said preferred ordinary stock Lord Tredegar hereby agrees and undertakes to accept such further amounts of the said stock (not exceeding £75,000) as he may be requested at any time prior to the expiration of the said period of five years by three months' notice in writing from the Company so to accept.

4. Lord Tredegar agrees to pay cash to the Company for all the further amounts of preferred ordinary stock accepted by him as aforesaid at the price of £95 for every £100 of such stock.

5. The Company agree and undertake to apply all moneys raised by the issue (as hereinbefore provided) to Lord Tredegar of such further amounts of the said preferred ordinary stock as hereinbefore mentioned and also all moneys raised by the issue (as hereinbefore provided) within five years from the date of the passing of the Bill into an Act of £150,000 of consolidated stock A and consolidated stock B or either of those stocks for the purpose exclusively of carrying into execution the dock extension mentioned in paragraph A and the river diversion mentioned in paragraph B and the pier extension mentioned in paragraph F of the clause of the Bill whereof the marginal note is "Power to make and maintain dock extension and other works."

6. It is further agreed between the Company and Lord Tredegar that the surplus profits in each year of the Company after paying the dividends for that year on the consolidated stock A and the consolidated stock B of the Company and all prior dividends and charges (if any) and after placing to reserve fund and carrying forward such sums as the directors of the Company may from time to time deem expedient shall be applied as and so far as the same may be sufficient in following manner (that is to say):—

Firstly in paying a dividend of four per centum per annum on the whole of the preferred ordinary stock of the Company;

[4 EDW. 7.] *Alexandra (Newport and South Wales)* [Ch. cxciii.]
Docks and Railway Act, 1904.

Secondly in paying dividend of four per centum on the whole of the deferred ordinary stock of the Company ; and A.D. 1904.

Thirdly in paying an additional dividend on the whole of the preferred and deferred ordinary stocks of the Company as if the same were one stock ranking equally for dividend :

Provided that this clause shall not come into operation till the first day of January next after preferred ordinary stock of the Company to the amount of at least £75,000 shall have been created and issued under the powers of the Bill and fully paid up.

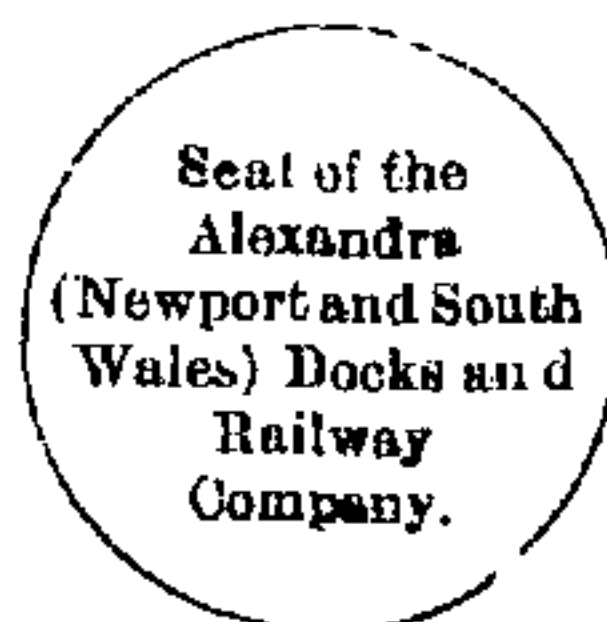
7. The obligations of the parties hereto are conditional on the passing of the Bill with provisions in it for the creation and issue of the above-mentioned amounts of consolidated stock A and consolidated stock B and preferred ordinary stock and for giving effect to the provisions of the last preceding clause of this agreement and this agreement is subject to such alterations and modifications (if any) as Parliament may see fit to make therein but if any material alteration is made therein either party shall be at liberty to withdraw from this agreement.

In witness whereof the Company have hereunto caused their common seal to be affixed and Lord Tredegar has hereunto set his hand and seal the day and year first above written.

The common seal of the Alexandra (Newport and South Wales) Docks and Railway Company was hereunto affixed by order of the Board in the presence of

EMANUEL M. UNDERDOWN
Director.

JNO. SMITH
Secretary.



Signed sealed and delivered by the above-named Lord Tredegar in the presence of } TREDEGAR.

J. E. W. RIDER
Lincoln's Inn
Solicitor.



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T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

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